

TENTATIVE RULINGS

FOR: August 28, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

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Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Eduardo Perez Mendoza et al v. Ronkar Deliveries LLC

23CV001390

Eduardo Perez Mendoza et al v. Ronkar Deliveries LLC

24CV002048

[1] MOTION TO COMPEL ARBITRATION (filed 1/28/26 in case no. 24CV002048)

[2] MOTION TO COMPEL ARBITRATION (filed 2/24/26 in case no. 23CV001390)

TENTATIVE RULING: The motions are DENIED.

A. PROCEDURAL BACKGROUND

1. Plaintiffs' Complaints

On October 27, 2023, Plaintiffs Eduardo Perez Mendoza (“Mendoza”) and Salvador Vidales Chavez (“Chavez”) (collectively, “Plaintiffs”), individually, and on behalf of the State of California and other aggrieved persons filed a PAGA Representative Action Complaint against Defendant Ronkar Deliveries LLC (“RD” or “Defendant”) in Case No. 23CV001390 (“PAGA Action”). Over a year later, on November 20, 2024, Plaintiffs, individually and on behalf of all others similarly situated, filed a Class Action Complaint against RD in Case No. 24CV002048 (“Class Action”).

The gravamen of both complaints is that Plaintiffs (and certain similarly situated employees of Defendant and other aggrieved persons) have been injured as a result of Defendants’ failure to pay Plaintiffs, the class members, and other aggrieved persons for all hours worked and/or failure to pay them at the appropriate minimum, regular, and overtime rates. The PAGA Action asserts a single cause of action for Civil Penalties Under PAGA. The Class Action asserts eight claims for violation of various provisions of the Labor Code, and a claim for Unfair Business Practices in violation of Business & Professions Code section 17200.

2. Defendant’s Motions to Compel Arbitration and Prior Proceedings/Orders Thereon

In both matters, Defendant moved, pursuant to the Federal Arbitration Act (“FAA”) (9 U.S.C. §§ 2, 4) and the California Arbitration Act (“CAA”) (Code of Civil Procedure §§ 1281.2, 1281.4),¹ for an order compelling Plaintiffs to arbitrate their claims on an individual basis pursuant to the terms of a valid and enforceable arbitration agreement, dismiss their class claims, and stay the actions pending completion of the individual arbitration.

In the Class Action, the motion originally came on for hearing on March 5, 2026. In the PAGA Action, the motion originally came on for hearing on March 20, 2026. In both the March 5 and 20 Minute Orders, the Court issued a partial ruling finding that (1) Defendant met its burden to show that an Arbitration Agreement exists between each Plaintiff, on the one hand, and Defendant, on the other hand, and (2) the Arbitration Agreements cover: (a) all of Plaintiffs’ claims in the Class Action, except the class claims, and (b) Plaintiffs’ “individual” PAGA claim in the PAGA Action. (See 3/5/26 Minute Order (Class Action), p. 1; 3/20/26 Minute Order (PAGA Action), p. 2.) A full analysis leading to these rulings, including rulings on evidentiary objections, is contained within the 3/5/26 Minute Order in the Class Action, which is hereby incorporated by reference.

After its partial ruling, the Court noted that the burden, therefore, shifts to Plaintiffs to prove any defenses to the validity and enforceability of the Arbitration Agreements. (See 3/5/26 Minute Order (Class Action), p. 4; 3/20/26 Minute Order (PAGA Action), pp. 2-3.) The Court stated, however, that it elected to defer ruling on Plaintiffs’ defenses until the United States Supreme Court had issued its decision in *Flowers Food, Inc., et al. v. Angelo Brock* 146 S.Ct. 327 (2025), *granting cert. to Brock v. Flowers Food* (10th Cir. 2024) 121 F.4th 753, *aff’g* 673 F.

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.